

SENATE No. 1361

The Commonwealth of Massachusetts

PRESENTED BY:

Jacob R. Oliveira

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing paid prenatal leave.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>4/17/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>9/16/2025</i>

SENATE No. 1361

By Mr. Oliveira, a petition (accompanied by bill, Senate, No. 1361) of Jacob R. Oliveira for legislation to establish paid prenatal leave program that would require employers to give employees twenty-four hours of paid prenatal leave during a fifty-two-week calendar. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing paid prenatal leave.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 30 of the General Laws is hereby amended by inserting after section 46I, the
2 following new section:-

3 Section 46J. Prenatal Leave

4 (A) Employers are required to give employees twenty-four hours of paid prenatal leave
5 during a fifty-two-week calendar. This leave can be taken and will be paid in hourly increments.
6 This compensation will be paid to employees at the rate of the regularly hour wage or the
7 minimum wage whichever is bigger. An employer will not be required to pay an employee in
8 cases where there is leftover prenatal leave due to that employee's separation from the company
9 in the form of but not limited to termination, retirement, resignation or any other form of
10 separation.

11 (B) Paid prenatal leave is defined as leave taken for health care services related or during
12 an individual's pregnancy such as but not limited to monitoring through ultrasounds, testing, or
13 appointments regarding either the baby or the mother's health.

14 (C) An employer may not require the disclosure of confidential information relating to
15 paid personal leave. No employer or their agent, or the officer or agent of any corporation,
16 partnership, or limited liability company, or any other

17 person, shall discharge, threaten, penalize, or in any other manner discriminate or
18 retaliate against any employee because such employee has exercised their rights afforded under
19 this section, including, but not

20 limited to, requesting sick leave or paid prenatal leave and using sick leave or paid
21 prenatal leave, consistent with the provisions of this section.

22 (D) Employers are required to give employees ten hours of prenatal leave for partner
23 support.